

Rakesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 30 March 2017 · WRIT - C No. - 9586 of 2017 · **Writ dismissed; billing dispute to be raised under Clause 6.5.**

HEADNOTE

A writ disputing electricity bills and alleging harassment by a private recovery agency was not entertained. The High Court held that a dispute regarding bills is to be raised under Clause 6.5 of the Electricity Supply Code, 2005, and dismissed the petition.

FACTUAL SUMMARY

Rakesh Kumar filed a writ alleging that the Electricity Department had contracted a private agency to recover bills and that the agency's agents were harassing him and his family. The Department denied any private recovery agency. The Executive Engineer deposed that private persons were engaged only to issue bills and that unpaid amounts were referred to Vigilance. The petitioner insisted the agency recovered dues, not merely issued bills, and disputed the electricity charges shown in the Corporation's bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — writ not entertained

HOLDING

A consumer's dispute about electricity dues shown in bills issued by the licensee is to be raised under Clause 6.5 of the Electricity Supply Code, 2005; the High Court will not entertain a writ petition on that dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS

Writ not entertained; petitioner left to raise the billing dispute under Clause 6.5. ¶ 1

NOT DECIDED — ENGAGEMENT OF A PRIVATE AGENCY FOR RECOVERY OF DUES

Executive Engineer denied recovery contracting; the Court recorded the denial and dismissed on Clause 6.5 without deciding the fact. ¶ 1